

Devendra v. Superintendent Engineer

High Court of Judicature at Allahabad · Division Bench · 17 May 2011 · Writ-C No. 28106 of 2011 · **Writ dismissed; relegated to CGRF and Ombudsman under clause 7.10.**

HEADNOTE

A writ is not entertained where the Executive Engineer has already considered the consumer's grievance; the alternative forum is the Consumer Grievance Redressal Forum and the Ombudsman under clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005. Dismissal does not prejudice the right to approach that forum, which must carefully consider any civil court decree and the fact of possession.

FACTUAL SUMMARY

Devendra approached the Allahabad High Court by Writ-C No. 28106 of 2011 against the Superintending Engineer and another. His electricity-supply grievance had already been considered by the Executive Engineer. The underlying controversy involved a civil court decree and the petitioner's possession of the premises. He sought writ interference rather than proceeding before the statutory consumer forum. The Division Bench heard the petition on 17 May 2011.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternative remedy — CGRF and Ombudsman

HOLDING

Where the Executive Engineer has already considered the consumer's grievance, the High Court will not interfere in writ; the alternative forum is the Consumer Grievance Redressal Forum and the Ombudsman under clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005. The dismissal does not affect the right to approach that forum for early disposal, and the forum must carefully go into any civil court decree and the petitioner's possession. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY GRIEVANCE, INCLUDING THE CIVIL COURT DECREE AND POSSESSION

Left to the CGRF/Ombudsman; the writ court declined to decide. ¶ 1